

year a forewritten agreed value and delivered in presence of
William & Bird

W. Edmonstone Esq.

John William Esq.

State of the Carolinas Court of Pleas and Quarter sessions A.D. 1840 the
Haywood county within due and duly acknowledged in open
court recorded and ordered to be registered hereafter the 15th of July 1840
Wm. H. H. Esq.

Registered the 23rd day of Sept A.D. 1840

B. Turner R. H. C.

Whereas by an act of the general assembly of the state of North Carolina passed in
the year 1836 it was enacted the duty of the governor of said state to convey
to the justices of Haywood county court in trust for said county any tract of
land commonly called Cherokee lands at that time remaining unsold
within the limits of said county they just complying with certain
provisions mentioned in said act and whereas His excellency Geo-
ward B. Dudley governor of said state by virtue of and in accordance with
the provisions of said act did grant to the said justices in trust for the said
county by patent bearing date the tenth day of January 1837 all the land
mentioned in the act of assembly aforesaid (they having just complied with
the provisions thereof) and whereas the said act of assembly further provides
that it shall and may be lawful for the justices of said court to dispose of said
lands for the use and benefit of said county under the direction of such
commissioners at such times and places and upon such terms as may be
determined by said court as a majority of the justices being present and where
as the justices of said county as a majority being present are ordered to carry in
to effect the said act did at the October session 1836 appoint Simon
Edmonstone and John William commissioners with full power to sell
and convey ^{the} said lands and the said Simon Edmonstone and John
William commissioners as aforesaid did at John B. Loe's Store in the coun-
ty aforesaid after having duly advertised the same on the twenty first day
of December 1836 of for the same at public sale to the highest bidder who
and where Peter Long became the purchaser of section No. 37 in district
No. 3 containing seventy acres for the sum of twenty eight dollars the same
being one of the tracts conveyed to the justices aforesaid by the aforesaid grant
Now therefore this indenture made the ninth day of February in the year
of our Lord one thousand eight hundred and forty between Simon
Edmonstone and John William commissioners as aforesaid of the
one part and the said Peter Long of the other part Witness that the